

OUTLINE OF EVIDENCE – MR CORY LEA SHEPHERD (APPELLANT)

Served pursuant to direction 2 of the Further Directions Order (3) dated 19 August 2026. Not filed in the Industrial Registry.

I will give evidence of the following.

- 1. Employment.** I commenced at Logan Hospital Switchboard in [MONTH] 2019, became permanent from 3 March 2021, am classified a continuous shift worker, and went full time from 16 October 2023.
- 2. The role.** Receiving emergency response notifications and distributing them to the correct response groups per emergency code procedures, "strictly adhering to protocols and timeframes"; maintaining the contact and paging numbers on which emergency paging depends; keeping "call queues to minimum at all times"; the systems I operated at once, and the call and emergency-code volume across a shift.
- 3. The database and the contact book.** That from 18 July 2023 I could no longer correct entries myself; that corrections had to go to Ms Stibbard or Ms Taylor; that the Contact & Number Changes book was removed from our room; and what that meant when a number was wrong, including overnight and at weekends.
- 4. The directives.** The after-hours on-call arrangement of 15 April 2024, the data-entry process of 19 April 2024 and the call-routing change of 9 May 2024; that I was not consulted before any of them; and what each required of me.
- 5. Ms Taylor's presence and hours.** When she was and was not present across 2023–2024, from my own observation; that I did not know her office hours; and my request of 15 May 2024 that she state them to the department.
- 6. What happened at the console.** What I saw when contact details were wrong — calls for emergency responses and for medical teams reaching the wrong destination between 2 and 8 May 2024, and delays to urgent results reaching treating staff — and what I did on each time.
- 7. The communication book.** The entry I wrote on or about 6 June 2023 about updating on-call contact numbers; that it was removed; and what was said to me afterwards, and in front of whom.
- 8. August–September 2023.** The concerns I raised in writing on 7 August 2023, the meeting that followed, and the responses of Ms Taylor and Ms Reese.
- 9. Special pandemic leave, February 2024.** That I was unwell with COVID-19; how many times I submitted the request and what I attached each time; the reasons given for each decline; and the approval given on the same material.
- 10. 13 and 15 May 2024.** That I made a complaint on 13 May 2024, later determined to be a public interest disclosure (content not set out); that on 15 May 2024 I was directed to retract the email in which I had asked about office hours; and that I knew of the email of 9 May 2024 in which Ms Taylor asked another person to confirm her hours.
- 11. Union representation.** When and to whom I expressed interest in becoming the Switchboard delegate; what followed; and my endorsement on or about 3 November 2025.
- 12. Pay — what was wrong.** The public holidays I was not rostered to work between February and April 2024 and the difference that made to my pay compared with colleagues. My concern was not the amount. It was that my pay was wrong and I could not have it corrected.
- 13. Pay — trying to have it corrected.** That Payroll identified the errors on 3 May 2024 and directed my manager to submit an AVAC for each fortnight; that I could not submit an AVAC myself; what I did between 3 and 28 May 2024 and what I was told; that on 28 May 2024 I was asked to sign a validation of claims older than three months; that of the five AVACs recorded for me in that period none was initiated by me; that the two AVAC process references Payroll identified do not appear in the record at all; and when I stopped pursuing it, and why.
- 14. The rostering pattern.** That rostering errors affecting my line recurred across successive roster periods, not once; when I identified them and to whom; and Ms Reese's acknowledgement of 10 May 2024 of "a few rostering errors made by Chloe with regards to Cory's line in past rosters".
- 15. 17 and 18 March 2024.** Where I lived and my travel time each way; finishing at 23:00 on 17 March and commencing at 06:00 on 18 March; the rest actually available after travel; the sleep I obtained; performing the duties at paragraph 2 in that condition on 18 March; and the sick leave I took on 19 March 2024.
- 16. Fatigue — what I raised, and what was never in place.** The fatigue and rostering concerns I raised and when; sending the fatigue toolkit to Ms Taylor and receiving no response; my request of 8 April 2024 and the refusal of 1 May 2024; and that at no time before 30 June 2024 was I given fatigue risk management training, any fatigue or psychosocial risk assessment of my rostering, or any fatigue management process.
- 17. After 18 June 2024.** Meetings scheduled while I was on certified leave; that my employment was ended under abandonment provisions while I held current medical certificates; and that I was subsequently reinstated.
- 18. Onset and effect.** The symptoms I experienced and when; the effect on my sleep, health and daily functioning; the onset date of 18 June 2024; attending my general practitioner and lodging my application on 1 July 2024; and my treatment since. I offer no clinical or diagnostic opinion.
- 19. Documents.** The rosters and payslips for the relevant periods; my emails and messages with my line manager and the Director; the leave and payroll records produced by the employer; the role description; and the letter of Metro South Hospital and Health Service of 5 June 2026 (ref K-LM26/729).

This outline states the topics on which I will give oral evidence. It is not a statement of evidence and is not verified.